

"INDIAN POLITY"

Introduction to Indian Constitution

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WHAT IS POLITY?

Any group run by Politics is called Polity.

It is a group of people who are collectively united and form an institutional hierarchy.

Political Science

- Study of City or State.
- Derived from greek word “*Polis*” and “*Scire*”
 - *Polis* → *State or City*
 - *Scire* → *Science*
- It is a systematic and scientific study or analysis of Political activity and behaviour
- Politics: The activities concerned with winning or holding control over Govt.

CONSTITUTION

“It is a body or a document which consists of certain fundamental rules and principles that all persons in a country can agree upon as the basis of the way in which they want the country to be governed.”

TYPES OF CONSTITUTION

Two Types

Written

- Codified in a logical manner
- Single document by a single group of body
- Eg: India, USA

Unwritten

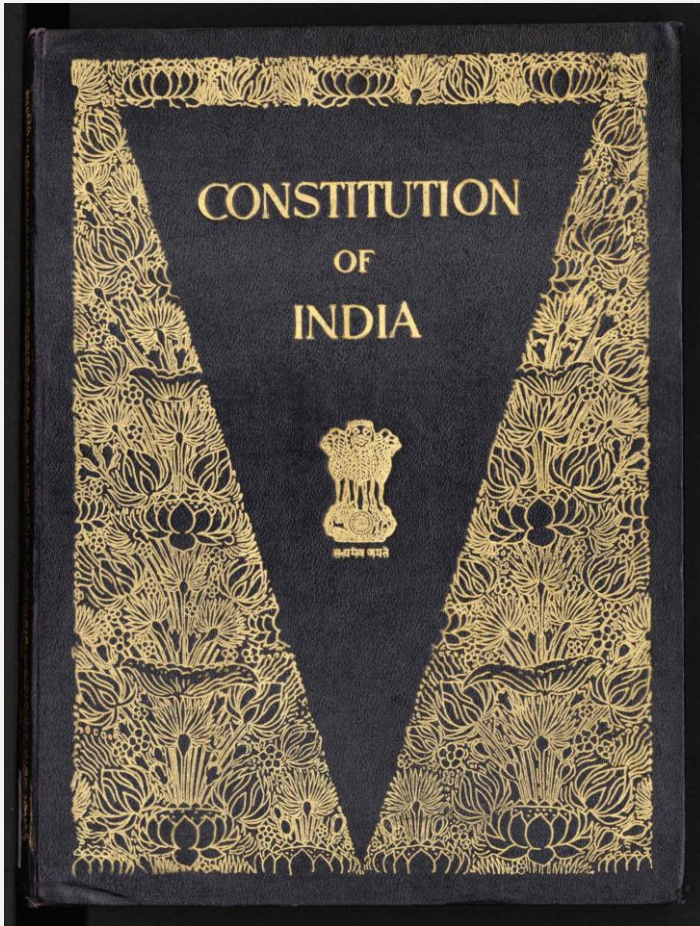
- Codified in a chronological manner.
- Evolved in due course of time
- Eg: United Kingdom, Canada

PURPOSE

- Lays out certain ideals that forms the basis of the kind of country that we as citizens aspire to live in.
- Defines the nature of a country's political system.
- Enables the government to fulfil the aspirations of a society and create conditions for a just society. (DPSP)
- It helps us to protect us against certain decisions that we might take that could have an adverse effect on the larger principles that the country believes in. For e.g.: Cow Vigilantes and slaughter, Ghar Wapsi etc
- Provides safeguards against leaders who might misuse their authority and sets some limits on what a govt. can impose on its citizens.

CONSTITUTION OF INDIA

HISTORY



- The first attempt to frame a constitution was taken up by a committee under the chairmanship of Motilal Nehru in 1928.
- “*Nehru Report*” was rejected by Jawaharlal Nehru in the INC session of 1929 in Lahore as the report mentioned India being a dominion of Britain.
- Idea of a Constituent Assembly to frame a constitution for India was first proposed by M.N. Roy in 1934.

FORMATION OF THE CONSTITUENT ASSEMBLY

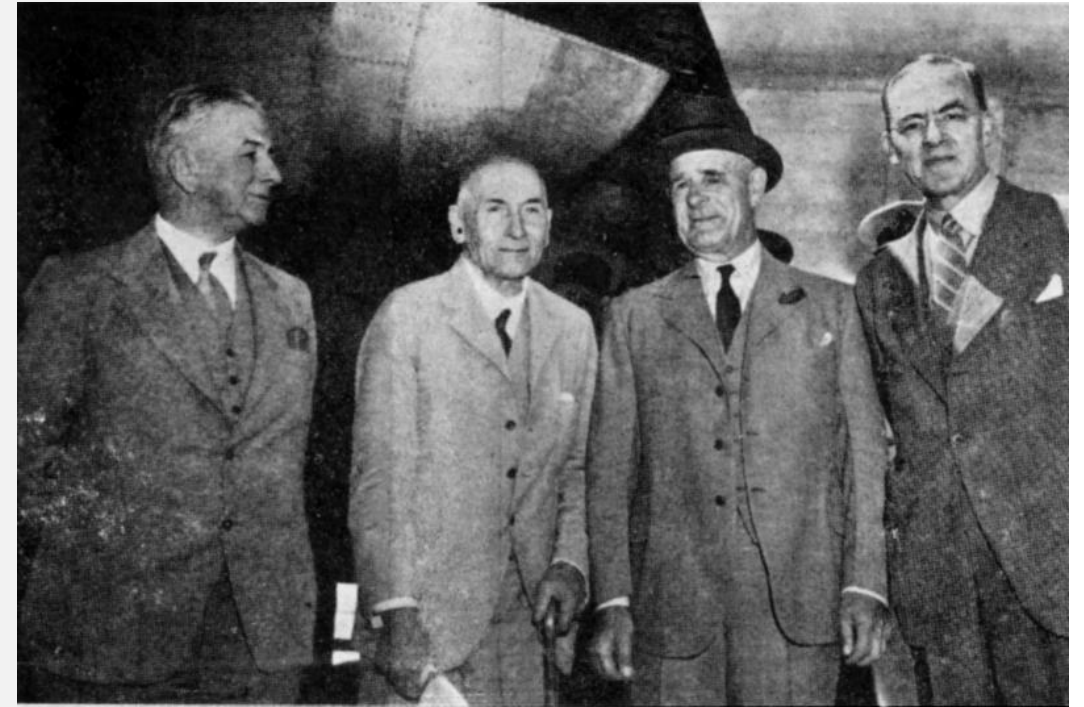
The Cripps Mission

- Initially, the colonial authorities resisted the demand for creation of a Constitution of India.
- But with the change in the circumstances - the outbreak of the World War II and formation of the new Coalition (Labour-led) government in Britain, the British government was forced to acknowledge the urgency to solve the problem related to Constitution of Indians.
- In 1942, the British government sent its cabinet member – Sir Stafford Cripps with the draft declaration on proposals (regarding formation of constitution for Indians) to be implemented at the end of the WW II provided both the Muslim League and the Indian National Congress had agreed to accept them.
- **Proposals:**
 - Dominion Status for India
 - Indian Union with Provinces and States
 - Constitution framed by elected Constituent Assembly
 - Opt-out clause for Provinces/States
- **Why Cripps Mission Failed**
 - **Muslim League:** Demanded partition and separate Constituent Assembly for Pakistan
 - **Indian National Congress:** Opposed the opt-out provision, sought immediate independence

FORMATION OF THE CONSTITUENT ASSEMBLY

The Cabinet Mission Plan (1946)

- The British Indian government made several attempts to bridge the differences between the Indian National Congress and the Muslim League. But it was unsuccessful.
- The British government sent another delegation of the Cabinet members, known as the Cabinet Delegation, which came to be known as the **Cabinet Mission Plan**.
- It consisted of three cabinet members – Lord Pathic Lawrence, Sir Stafford Cripps and Mr. A.V. Alexander. The Cabinet Delegation also failed to bring the Indian National Congress and the Muslim League to an agreement.
- **Key Recommendations:**
 - Union of India with limited powers (Foreign Affairs, Defense, Communication)
 - Residuary powers with Provinces and States
 - Union Executive and Legislature with communal safeguards
 - Provinces could form Groups with their own executives and legislatures



LORD WAVELL [VICEROY] WITH MEMBERS OF CABINET MISSION [MARCH '46]
[L. TO R.] A. V. Alexander, Lord Pethick-Lawrence, Lord Wavell & Sir Stafford Cripps

[FIVE]

CONSTITUTION OF INDIA

HISTORY

- With Independence came the need for a Constitution.
- Hence, a Constituent Assembly was formed for this purpose in 1946 and on January 26, 1950, the Constitution came into being.
- However, various features of the Indian Constitution and polity have their roots in the British rule.
- There were certain events in the British rule that laid down the legal framework for the organization and functioning of government and administration in British India.
- These events have greatly influenced our constitution and polity. They are explained here in a chronological order under two major headings :
 1. The Company Rule (1773 – 1858)
 2. The Crown Rule (1858 – 1947)

CONSTITUTION OF INDIA

Evolution

- Regulating Act 1773
- Pitts India Act 1784
- Charter Act 1813
- Charter Act 1833
- Charter Act 1853
- Government of India Act 1858
- Indian Council Act 1861
- Indian Council Act 1892
- India Council Act 1909 (Morley- Minto Reforms)
- Government of India Act 1919 (Montague- Chelmsford Reforms)
- Government of India Act 1935
- Indian Independence Act 1947

CONSTITUTION OF INDIA

Salient Features of the Constitution

- It is the lengthiest written constitution.
 - Originally (in 1949), it contained a Preamble, 395 Articles (divided into 22 parts) and 8 schedules.
 - Presently, it has about 465 articles, divided into 25 parts and 12 schedules
- Drawn from various sources
 - It derives inspiration from the Constitution of USA, Ireland, Germany, South Africa, Australia, USSR, France and United Kingdom
- Parliamentary form of government
- Unique blend of flexibility and rigidity
- Integrated and independent judiciary
 - Supreme court is a federal court, the highest court of appeal, guarantee of fundamental rights of the citizens and the guardian of the constitution.
- Fundamental Rights
- Fundamental Duties
- Directive Principles of State Policy
- A secular state
- Single Citizenship

CONSTITUTION OF INDIA

Making of the Constitution

- In order to make the constitution, a **Constituent Assembly** was made, which comprised of **389 members**, out of which **296** represented British India. Remaining **93** were allotted to the *Princely States*, which remained empty as they decided to stay away from the assembly.
- The Constituent Assembly held its first meeting on **9th December 1946**. Muslim League boycotted this meeting, hence was attended by only **211 members**.
- **Dr. Sachchidananda Sinha** was elected as the president on 9th December, while on 11th December, **Dr. Rajendra Prasad** was elected as the president.
- **J.L. Nehru** moved the *Objective Resolution* on 13th December 1946.
- **B.N. Rao** was appointed as the constituent advisor to the committee
- It took **2 years 11 months and 18 days** to make the constitution.



CONSTITUTION OF INDIA

Making of the Constitution

- Responsibility to draft the Constitutional document was with the *Drafting Committee*. Its members were:
 1. Dr. B.R. Ambedkar, Chairman
 2. N. Gopalaswami Iyengar
 3. Alladi Krishnaswami Aiyer
 4. K.M. Munshi
 5. Syed Muhammed Saadullah
 6. N. Madhav Rao (in place of B.L. Mitra)
 7. D.P. Khaitan (replaced by T. Krishnamachari after Khaitan's death in 1948)
- The Drafting Committee took less than **6 months** to prepare draft of the constitution
- Provisions relating to citizenship, elections and provisional Parliament was implemented immediately.
- Rest of the provisions came into force on **26th January 1950**.
- 26th January was chosen in order to commemorate the Poorna Swaraj declaration of independence on 26th January 1930.

CONSTITUTION OF INDIA

Sources

Sources	Features borrowed
Government of India Act, 1935	• Federal System (More than one level of government) • Office of the Governor • Emergency Provisions • Public Service Commission
British Constitution	• Parliamentary form of government. • Single Citizenship • Cabinet System • Bicameralism
US Constitution	• Fundamental Rights • Independence of judiciary • Post of Vice President
Irish Constitution	• DPSP (Irish borrowed it from Spanish Constitution) • Method of electing President • Nominating members in the upper house (Rajya Sabha)

CONSTITUTION OF INDIA

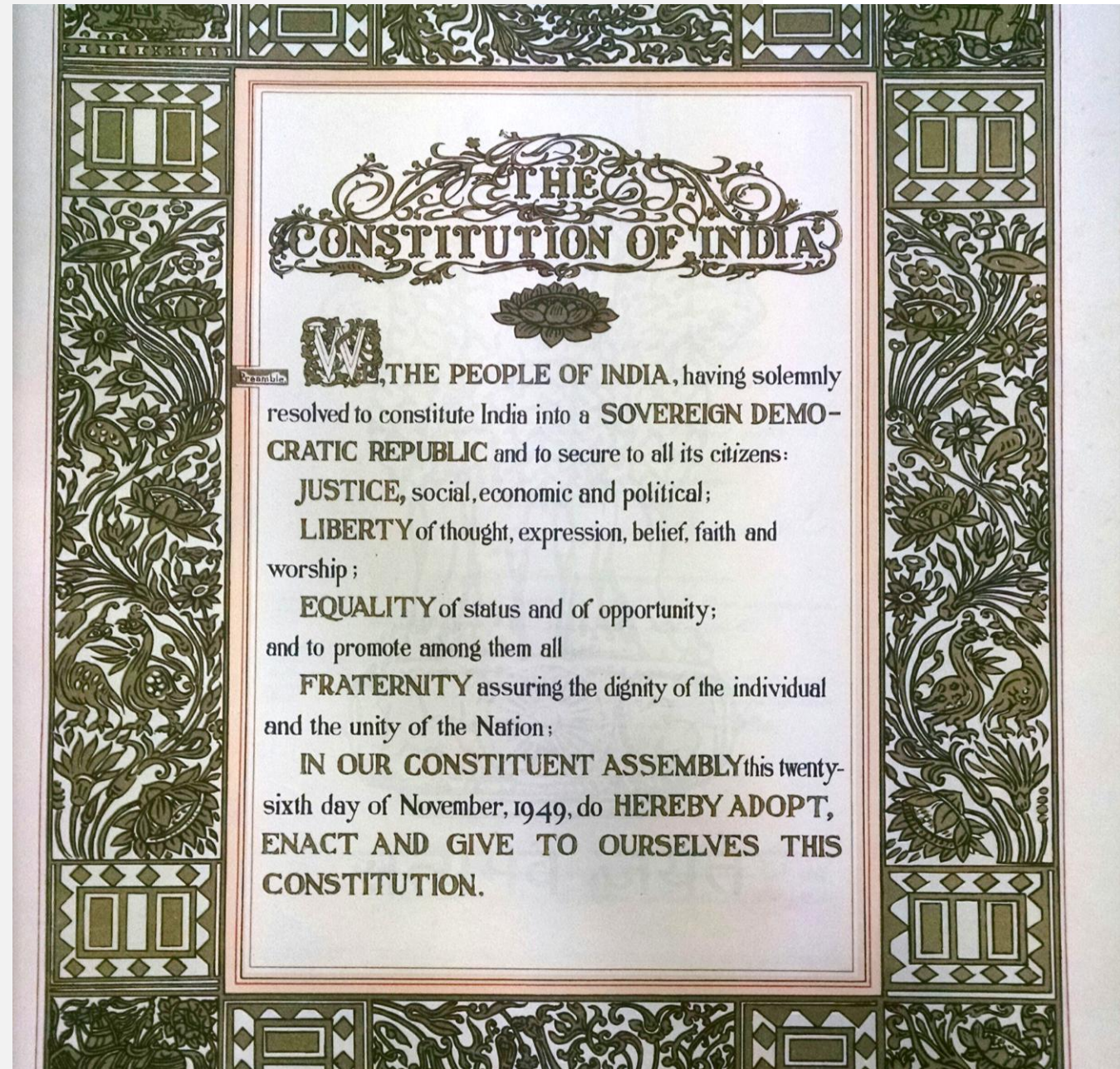
Sources

Sources	Features borrowed
Canadian Constitution	• Quasi- Federal form of government
Australian Constitution	• Concurrent List
Former USSR	• Fundamental Duties • Five Year Plans
Weimar Constitution of Germany	• Suspension of Fundamental rights during Emergency
South African Constitution	• Procedure of election of Rajya Sabha • Procedure of amendment of the constitution
French Constitution	• Republic • Ideals of Liberty, Equality and Fraternity.

CONSTITUTION OF INDIA

Preamble

- It means introduction or preface of a statute book.
- It is called the gist or summary.
- Constitution framers took the idea of Preamble from the **American Constitution**. It is the first constitution with a Preamble.
- It is based on the **Objective Resolution** of Nehru and was adopted by the constituent assembly on 13th December 1946.
- It contains summary or essence of the constitution.
- It is an integral part of Constitution
- Preamble is not enforceable by law (i.e. not justiciable)



CONSTITUTION OF INDIA

Preamble

- N.A. Palkhivala, an eminent jurist and constitutional expert, called Preamble as the identity card of the constitution.
- K.M. Munshi called it as the political horoscope of Indian Constitution.
- Thakurdas Bhargava called preamble as Soul of the Constitution.



CONSTITUTION OF INDIA

Preamble

Significance of the Preamble

SOVEREIGN	Free to follow internal and external policies
SOCIALIST	No concentration of power and money
DEMOCRATIC	Elected representatives
REPUBLIC	No room for hereditary ruler or monarch

PREAMBLE

The Preamble in its present form reads:

“WE, THE PEOPLE OF INDIA, having solemnly resolved to constitute India into a SOVEREIGN SOCIALIST SECULAR DEMOCRATIC REPUBLIC and to secure to all its citizens

- **JUSTICE, social, economic and political;**
- **LIBERTY of thought, expression, belief, faith and worship;**
- **EQUALITY of status and of opportunity; and to promote among them all**
- **FRATERNITY assuring the dignity of the individual and the unity and integrity of the Nation;**

**IN OUR CONSTITUENT ASSEMBLY this 26th day of November, 1949, do
HEREBY ADOPT, ENACT AND GIVE TO OURSELVES THIS
CONSTITUTION.”**

PREAMBLE

Keywords

- **Sovereign:**

- The word 'Sovereign' implies that India is neither a dependency nor a dominion of any other nation, but an independent state.
- Being a sovereign state, India can either acquire a foreign territory or cede a part of its territory in favour of a foreign state.

- **Socialist**

- Indian brand of socialism is a democratic socialism and not a communistic socialism.
- Democratic socialism holds faith in mixed economy where both public and private companies co-exist.
- The new economic policy (1991) of liberalisation, privatisation and globalisation has diluted the socialist credential of the Indian State.
- The term was added in the **42nd Amendment** in **1976**.

PREAMBLE

Keywords

- **Secular**

- The term was added in the **42nd Amendment** in **1976**.
- All religion in our country (irrespective of their strength) have the same status and support from the state.

- **Democratic**

- A democratic polity, as stipulated in the Preamble, is based on the doctrine of popular sovereignty, that is, possession of supreme power by the people.
- Universal adult franchise, periodic elections, rule of law, independence of judiciary, and absence of discrimination on certain grounds are the manifestations of the democratic character of the Indian polity.

- **Republic**

- A democratic polity can be classified into two categories—monarchy and republic. In a monarchy, the head of the state (usually king or queen) enjoys a hereditary position, that is, he comes into office through succession, eg, Britain. In a republic, on the other hand, the head of the state is always elected directly or indirectly for a fixed period, eg, USA, India.

PREAMBLE

Keywords

- **Justice**

- The term ‘justice’ in the Preamble embraces three distinct forms—social, economic and political, secured through various provisions of Fundamental Rights and Directive Principles.
- Social justice denotes the equal treatment of all citizens without any social distinction based on caste, colour, race, religion, sex and so on.
- Economic justice denotes the non-discrimination between people on the basis of economic factors. It involves the elimination of glaring in-equalities in wealth, income and property. A combination of social justice and economic justice denotes what is known as ‘distributive justice’.
- Political justice implies that all citizens should have equal political rights, equal access to all political offices and equal voice in the government.
- The ideal of justice—social, economic and political—has been taken from the Russian Revolution (1917).

PREAMBLE

Keywords

- **Liberty**

- The term ‘liberty’ means the absence of restraints on the activities of individuals, and at the same time, providing opportunities for the development of individual personalities.
- The Preamble secures to all citizens of India liberty of thought, expression, belief, faith and worship, through their Fundamental Rights, enforceable in court of law, in case of violation.
- The ideals of liberty, equality and fraternity in our Preamble have been taken from the French Revolution (1789–1799).

PREAMBLE

Keywords

- **Fraternity**
 - Fraternity means a sense of brotherhood.
 - The Constitution promotes this feeling of fraternity by the system of single citizenship.
 - The Fundamental Duties (Article 51-A) say that it shall be the duty of every citizen of India to promote harmony and the spirit of common brotherhood amongst all the people of India transcending religious, linguistic, regional or sectional diversities.

THANK YOU !!!